

The U.P. Private Forests Rules, 1950

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State of Uttar Pradesh - Act

The U.P. Private Forests Rules, 1950

UTTAR PRADESH

India

The U.P. Private Forests Rules, 1950

Rule THE-U-P-PRIVATE-FORESTS-RULES-1950 of 1950

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The U.P. Private Forests Rules, 1950

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Chapter I

Preliminary

1.

Short title and commencement.

(a)

These rules may be called the U.P. Private Forests Rules, 1950.

(b)

They shall come into force at once.

2.

Definitions.

- In these rules unless there is anything repugnant to the subject or context,-

(a)

"Act" means the U.P. Private Forest Act, 1948 (U.P. Act VI of 1949);

(b)

"Section" means section of the Act;

(c)

"Divisional Forest Officer" means-

(1)

for the purposes of notified forests an officer-in-charge of a Forest Division of the U. P. Forest Department and the Collector of a district which is not included in any Forest Division;

(2)

for purposes of dead, old and fruitless trees in a grove of 2.5 acres or less in area-

(a)

in areas to which the U.P. Zamindari Abolition and Land Reforms Act applies the Chairman of the Land Management Committee concerned;

(b)

in areas to which the U. P. Zamindari Abolition and Land Reforms Act does not apply-

(i)

the President of the [Gaon Panchayat]

[Now known as 'Gram Panchayat' vide U.P. Act No. 9 of 1994.]

concerned;

(ii)

where there is no [Gaon Panchayat]

[Now known as 'Gram Panchayat' vide U.P. Act No. 9 of 1994.]

and the area is either included in, or adjoins, the jurisdiction of local body, i.e. a [Notified Area Committee]

[Now known as 'Nagar Panchayat' vide U.P. Act No. 12 of 1994.]

, or a [Town Area Committee]

[Now known as 'Nagar Panchayat' vide U.P. Act No. 12 of 1994.]

or a [Municipal Board]

[Now known as 'Municipality' vide U.P. Act No. 12 of 1994.]

, the President of the [Notified Area Committee]

[Now known as 'Nagar Panchayat' vide U.P. Act No. 12 of 1994.]

, or the [Town Area Committee]

[Now known as 'Nagar Panchayat' vide U.P. Act No. 12 of 1994.]

or the Chairman of the [Municipal Board]

[Now known as 'Municipality' vide U.P. Act No. 12 of 1994.]

, as the case may be;

(3)

for purpose of all groves, except in respect of the dead, hollow, old and fruitless trees in a grove of 2.5 acres in area or less the Collector of the district.

(d)

"Conservator" means the Conservator of Forest in-charge of any Circle of the U. P. Forest Department;

(e)

"Chief Conservator" means the Chief Conservator of Forests of U. P.;

(f)

"Land Management Committee" means a committee established under Section 121 of the U. P. Zamindari Abolition and Land Reforms Act, 1950 (U. P. Act

1 of 1951

);

(g)
["Gaon Panchayat"]
[Now known as 'Gram Panchayat' vide U.P. Act No. 9 of 1994.]
means the [Gaon Panchayat]
[Now known as 'Gram Panchayat' vide U.P. Act No. 9 of 1994.]
constituted under Section 12 of the U. P., Panchayat Raj Act, 1947 (U. P. Act XXVI of 1947);

(h)
"Range Officer" means an officer-in-charge of a range;

(i)
"Blank" means an area over which there is no tree growth, and includes land covered with grass and shrubs;

(j)
words and expressions used in these rules and not specifically defined have the meanings respectively assigned to them in the Act.

Chapter II

Management of a Notified Area of Forests

3.

Felling permit.

(a)
On receipt of an application in writing from a person having the right to cut, collect or remove any trees, timber or fuel from a notified forest and subject to such directions as may be issued by the Conservator from time to time "felling permit" in Form I may be issued by the Divisional Forest Officer :
Provided that a felling permit shall not be issued by the Chairman of a Land Management Committee or the President of a [Gaon Panchayat]
[Now known as 'Gram Panchayat' vide U.P. Act No. 9 of 1994.]
except with the previous approval of the Tahsildar concerned and by the President of local bodies, i.e. [Notified Area Committee]
[Now known as 'Nagar Panchayat' vide U.P. Act No. 12 of 1994.]
, or a [Town Area Committee]
[Now known as 'Municipality' vide U.P. Act No. 12 of 1994.]
and by the Chairman of a [Municipal Board]
[Now known as 'Municipality' vide U.P. Act No. 12 of 1994.]
without the previous approval of the Sub-Divisional Officer concerned.

(b)
In cases of emergency, e.g., when wood is required for burning a dead body or for making mechanical implements, the Collector or such officer not below the rank of a Tahsildar, as may be authorised by him in this behalf, may under intimation to the Divisional Forest Officer, issue the felling permit in Form I for the felling of not more than two trees in a notified area or notified forest for the bona fide use of the applicant but not for sale.

4.

Permit for reclamation of land.

(a)
On receipt of an application in writing from a person having the right to reclaim any land in a notified area or forest and subject to the prior approval of Government in each case, except that of groves a permit to reclaim land may be issued in Form II by the Divisional Forest Officer :
Provided that no permit for reclamation shall be issued in respect of groves by an authority other than the Collector concerned.

(b)
No person shall be permitted to reclaim any land other than grove land over which there is tree growth or which is suitable for afforestation.

(c)
A map of the area which is permitted to be reclaimed shall be signed by the Divisional Forest Officer and attached to the permit. A copy of the map shall be kept on record by the Divisional Forest Officer in his office.

5.

Quantity of timber of forest produce permitted to be taken by right-holders.

(a)

To the extent that any restrictions specified in any record of rights, prepared under any law for the time being in force, are not repugnant to, or superseded or modified by these rules, such restrictions shall be deemed to form part of these rules.

(b)

The maximum quantity of timber and fuel that any right-holder may remove in any one year shall be as follows :

Timber. - 9 cubic feet in the round.

Fuel. - 150 cubic feet stacked :

Provided that in any forest the total share of all the right-holders shall not exceed one-half of the total forest produce available in that year's annual coupe.

(c)

No person entitled to cut, collect or remove trees, fuel or timber in or from any forest under these rules shall do so except in or from the area noted in the permit mentioned in clause (f) of this rule.

(d)

Should in any year the coupe or portion of the forest from which the individual right-holders are permitted to draw their share of forest produce be insufficient to meet the maximum requirements of all such individual shares, the quantity allowed to be removed by each right-holder shall be proportionately reduced in accordance with the capacity of the coupe or portion of the forest and the quantity which each right-holder may remove during the year shall be determined by the Divisional Forest Officer.

(e)

The Conservator may declare by an order in writing the whole or any part of a notified area or forest, or as a "plantation" or "regeneration area" or a "fodder reserve" for period not exceeding 20 years at a time. In such "plantations" or "regeneration area" or "fodder reserve" all rights of the landlord and the right-holders shall remain suspended for the period of the closure; but grass cutting in all these areas and felling of trees in fodder reserves may be permitted from time to time subject to such conditions as the Conservator, may, from time to time, prescribe. Special passes will be issued by the Divisional Forest Officer for the purpose.

(f)

No right-holder shall be allowed to remove any forest produce unless he holds a permit in Form I which he must produce on demand by a forest or police officer.

(g)

Roots of trees shall not be dug except where permitted by the Divisional Forest Officer in writing.

(h)

No accumulation of rights of timber and fuel shall be permissible. In special cases, advance rights of timber and fuel up to five years may be sanctioned by the Divisional Forest Officer. Such advance shall be recouped within a period not exceeding ten years by reducing the quantities of timber and fuel to which the right-holder is entitled in every succeeding year.

(i)

A register showing the quantity and class of forest produce removed by the right-holders from each felling coupe shall be prepared and maintained by the landlord in a form approved for the purpose by the Conservator. Such register shall be produced for inspection on demand by the Divisional Forest Officer. The Divisional Forest Officer shall make his inspection at least once in six months.

6.

Felling licence.

- On receipt of an application in writing from the landlord a "felling licence" may be issued by the Divisional Forest Officer in Form III. No such felling licence shall be issued except in the cases of groves, without the previous sanction of the Government or such officer to whom the power may be delegated by Government in this behalf :

Provided that no felling licence in respect of a grove shall be issued by any authority except the Collector concerned.

7.

Preparation of working-plan for the management of a notified forest.

(1)

In cases in which the Conservator considers that a working-plan should be prepared for the management of a notified forest, he shall issue a notice directing the owner to prepare a working plan within a specified period.

(2)

The owner may either prepare the working-plan himself or request the Conservator to prepare a working-plan on his behalf.

(3)

Where the owner makes a request under sub-rule (2), the Conservator may direct a Forest Officer to prepare a working-plan on behalf of the owner.

(4)

Where the owner does not submit a working-plan or does not request the Conservator to have it prepared on his behalf within the period specified in the notice issued under sub-rule (1), the Conservator may have it prepared departmentally.

8.

Working-plan.

(a)

The working-plan shall contain particulars as specified in Appendix A to these rules.

(b)

It shall be legibly written or typed in Hindi or English.

(c)

It shall be submitted to the Conservator who will submit it for approval to the Chief Conservator with his recommendations.

(d)

The Chief Conservator may, by order in writing accept or modify the working-plan in such manner as he may consider necessary or direct that another working-plan shall be substituted for it.

9.

Realisation of the cost of preparation of a working-plan.

(1)

The cost of preparation of the working-plan under sub-rule (3) or sub-rule (4) of Rule 7, shall, if the working-plan shows that the forests will be run at a profit be paid by the owner within a period to be specified by the Conservator. If the owner does not pay the cost within the period specified, it may be recovered as an arrear of land revenue under sub-section (5) of Section 13.

(2)

In cases of forest which, according to the working-plan prepared under Rule 7, will not be run at a profit, the cost shall be borne by Government.

10.

Management of forest by owner to be according to the approved working-plan.

- When a working-plan has been approved by the Chief Conservator in respect of notified forest, such forest shall be managed by the owner in accordance with the prescriptions thereof and no deviation from such prescriptions shall be permitted without the previous sanction of the Chief Conservator.

11.

Disposal of forest produce forfeited under Section 15.

- Any trees, timber or other forest produce forfeited under Section 15 shall be handed over by the Collector to the Divisional Forest Officer for disposal, provided that the Collector may direct the sale or disposal of any property subject to rapid decay. All sale-proceeds from such articles will be credited to forest revenues when the period of appeal is over or the appeal if preferred has been decided against the offender.

Chapter III

Vested Forests

12.

Mode of serving a copy of notification issued under Section 17 (1).

- A copy of the notification issued under Section 17 (1) shall be served on the landlord either by tendering, delivering or sending it by post in a registered cover under the Indian Post Offices Act, 1898 (VI of 1898), to the landlord concerned,

or to his agent, or by affixing it to some conspicuous part of the residential house of such landlord or his agent. When the landlord resides in another district, the notification may also be sent by post to the Collector of that district, for service.

13.

Mode of hearing objections.

- As soon as possible after the expiry of the period specified in the notification under Section 17, the Collector shall issue a notice fixing the date, time and place for hearing of the objections presented to him under clause (c) of sub-section (1) of that section and shall serve it on the landlord concerned in the manner specified in Rule 12.

14.

Submission of report by Collector to Government.

- If no objection is presented under clause (c) of sub-section (1) of Section 17 or if such objection is presented and finally disposed of under Section 18, the Collector shall send a report to Government together with a copy of the orders passed by him on the objection, if any, to enable Government, to issue a notification under sub-section (3) of Section 18.

15.

Hearing of claims by the Forest Settlement Officer.

(1)

After a notification under sub-section (3) of Section 18 has been issued and the period specified in the proclamation under Section 19 has expired, the Forest Settlement Officer shall fix a date for hearing of the claims and issue a notice to each claimant to be present if he so desires at the hearing of the claims.

(2)

The landlord may be present either personally or through an authorised agent or counsel or file a written statement duly stamped in accordance with the Court Fees Act, 1870 or to both. He shall be allowed to produce evidence, both oral and documentary.

16.

Publication of orders issued under Section 27 (1).

- A copy of the order issued sub-section (1) of Section 27 shall be affixed at the headquarters of the tahsil in which the areas to which such order appertains is situate and also at some place of public resort at or in the neighbourhood of such area.

17.

Appellate authority.

- An appeal from the order passed by the Forest Settlement Officer under Section 22 or Section 24 or Section 28 shall lie to the Commissioner of the division in which the vested forest lies.

18.

Maintenance of revenue and expenditure accounts of vested forest.

(1)

The accounts of revenue and expenditure in respect of every vested forest shall be maintained according to the rules in U. P. Financial Hand-book, Volume VII.

(2)

When the forests of two or more landlords are managed by the same staff, the apportionment of the cost of management shall be made in accordance with the areas of their respective forests :

Provided that any special charges incurred solely on account of the management of any particular forest shall be debited solely to the account of the landlord of that forest.

(3)

The apportionment of the revenue derived from forest belonging to two or more landlords, when managed by the same staff, shall be made in accordance with the areas of their respective forests :

Provided that the revenue derived from any individual forest shall be credited to the accounts of the landlord of that forest.

(4)

The account of Government forest shall be kept entirely separate from that of a vested forest.

19.

Supply of abstract of accounts to landlord.

- An abstract of the yearly accounts of each vested forest shall be supplied to the landlord of that forest on the first day of July following the year to which the accounts relate.

20.

Payment of allowances and profits to landlord.

- The allowance determined in accordance with clause (1) (a) and the net profits, if any, payable according to clause (b) of Section 41, shall be paid to the landlord on or before the first day of July following the close of the year to which the allowance and net profits relate.

21.

Disposal of forest produce of vested forest.

- The forest produce shall ordinarily be sold by the Divisional Forest Officer by public auction after due publicity under an agreement with the contractors. The contract may either be one in which a lump sum is to be paid by the purchaser or one in which the sum is paid for the monopoly of the extraction of certain produce, further sums being payable at fixed rates and intervals.

Note. - Disposal of forest produce otherwise than, by auction is permissible only with the special sanction of Government.

22.

Licence for removal of forest produce.

(a)

The Divisional Forest Officer may, on application, grant a licence in Form III to any person who is the inhabitant of a town or village in the neighbourhood of a vested forest to take trees and timber or other produce of the said forest for his own use.

(b)

A security, the amount of which will be determined by the Divisional Forest Officer, shall be deposited by the landlord with the Divisional Forest Officer and pledged to him for the fulfilment of the conditions of the licence. The security will be refundable when the conditions of the licence have been fulfilled. In the event of the non-fulfilment of any of these conditions the security will be liable to confiscation in whole or in part at the discretion of the Divisional Forest Officer. This is without prejudice to any other action which may be taken by the Divisional Forest Officer.

23.

Gutting, sawing, etc. of forest produce in vested forests.

- The cutting, sawing, conversion and removal of trees and timber and the collection, manufacture and removal of forest produce from vested forests shall be regulated according to the prescriptions of the approved working-plan of the forest : Provided that where the right to exploit forest produce in any area of a vested forest has been solely leased or otherwise granted to any firm or individual, the cutting, sawing, etc. of trees and timber and the collection, manufacture and removal of forest produce shall be subject to the terms of the instrument of sale or lease that may have been executed in favour of the firm or individual :

Provided further that where there is no approved working-plan for a forest and also in respect of matters for which there is no provision in the working-plan, the cutting, sawing, conversion and removal of trees and timber and the collection, manufacture and removal of forest produce shall be regulated by orders issued from time to time by the Chief Conservator.

24.

Examination of forest produce passing out of the vested forests.

(1)

The Conservator may establish export and check chowkis for examination of forest produce passing out of any vested forest.

(2)

All forest produce from such vested forests must pass through such export and check chowkis.

(3)

All export of forest produce must be covered by passes or rawannas.

(4)

Rawannas shall be issued by the persons authorised to remove the forest produce or his agent in triplicate, two copies being handed over to the person carrying forest produce, and one copy kept on record. At the check chowki the person

carrying the forest produce shall hand over both the copies of the rawannas to the officer-in-charge of the check chowki who shall return one copy duly endorsed by him and keep the other copy with him. The person carrying the forest produce shall produce his copy of the rawannas for examination whenever demanded by any forest or police officer.

(5)

In the rawannas the description of the forest produce covered by the rawanna shall be stated briefly. In the case of sawn timber or timber in the round, the species, and the dimensions of each piece shall be stated along with its cubical content.

(6)

If in any vehicle there are pieces of different dimensions which cannot be properly checked without unloading the vehicle the officer-in-charge of the chowki may require the vehicle to be unloaded.

(7)

All timber must be marked, with a property mark by the person authorised to remove the forest produce.

(8)

All such marks shall be registered at the office of the Divisional Forest Officer in whose jurisdiction the vested forest lies. The registration shall hold good up to September 30, following. No person shall be allowed to register a mark already registered in favour of another person, nor any mark used by the Government.

(9)

The Forest Officer may refuse to register any mark which, in his judgement, closely resembles a mark used by the Government or a mark already registered in favour of any person.

(10)

A fee of one rupee shall be payable for each registration and a certificate showing the mark registered, the period for which it holds good, and acknowledging payment of the fee, shall be given to every person at whose instance the mark is registered.

(11)

Before exporting timber from any vested forest, it shall be marked with a sale or export hammer which shall be registered in the same manner as a property mark.

(12)

No export shall take place between sunset and sunrise.

25.

Clearing and breaking up of a land for cultivation or other purposes in vested forests.

(1)

The Divisional Forest Officer may on an application made in this behalf issue with the sanction of the Chief Conservator, a permit in Form II for the breaking up a land in a vested forest for cultivation on condition specified therein and subject to the instructions contained in Rule 4.

(2)

Permission to break up land in a vested forest for any purpose other than cultivation shall not be granted except with the previous sanction of Government.

26.

Protection from fire of timber or trees in a vested forest.

(1)

Any person authorised to collect inflammable forest produce including grass and bamboos within the limits of a vested forest shall do so in staks in an open space in such a manner as to involve no danger to the said forest in the event of ignition of the stacks.

(2)

No person shall camp within a vested forest at any place other than a place cleared or set apart by the Divisional Forest Officer for the purpose of camping. A list of places which may be used as camping grounds shall be affixed at the office of the Divisional Forest Officer and also at the headquarters of the ranges concerned.

(3)

The period beginning from January 15 and ending on June 30, will be considered as fire season, unless modified by the Government from time to time to suit local conditions and during this season, the following acts shall be prohibited :

(a)

carrying a naked fire or burning wood, firebrand naked lighted torch, lighted bidi, chelum, cigar or cigarettes or any other burning matter along the boundary of or through a vested forest;

(b)

kindling a fire for the purpose of clearing any land adjoining a vested forest, unless a clear one week's notice is given to the Divisional Forest Officer, or to the nearest Range Officer, or any of his subordinate not below the rank of a Forester and a belt of land at least 20 feet broad and adjoining the vested forest is cleared of all inflammable material;

(c)

kindling any fire on any day or at any time when high wind is blowing.

27.

Cutting of grass and pasturing of cattle.

(1)

The Chief Conservator may declare by issue of a notification in the Official Gazette, any part of vested forest not being more than one fifth of the total area of the forests, as a 'plantation' or 'regeneration' area, or a 'fodder reserve', for a period not exceeding twenty years at a time. In such 'plantation' or 'regeneration' area, or a 'fodder reserve', all rights whether of the landlord or any other person shall remain suspended for the period of closure and no grazing will be permitted. Such cutting may, however, be permitted from time to time subject to such conditions as the Conservator may, from time to time, prescribe. Special passes will be issued by the Divisional Forest Officer for the purpose of grass cutting in such cases.

(2)

Any person may cut in, and remove, from any vested forest, except in "plantation" or "regeneration" areas, or "fodder reserves", fodder grasses other than "baib" grass and grasses normally used for thatching purposes, on payment of fees prescribed for the purposes by the Conservator and subject to such conditions as he may from time to time prescribe ; Provided that the landlord of, or the right-holders having rights in that forest, will not be required to pay for such grasses, if cut and removed by him or by them for his or their bona fide domestic consumption and not for the purpose of trade.

(3)

Cutting and removal of 'baib' grass and all other grasses used for industrial purposes will be subject to special regulations to be prescribed by the Chief Conservator from time to time.

(4)

"Plantation" and "regeneration" areas will be opened for grass cutting and not for grazing as soon as the condition of the crop permits, for which the Chief Conservator shall be the sole judge.

When grazing is permitted in any part or parts of a vested forest, the landlord or the right-holders may be allowed, free of charge and others on payment, at the rates prescribed by the Chief Conservator, to graze their cattle subject in all cases to such regulations as the Chief Conservator may, from time to time, issue in this behalf :

Provided that no grazing shall be allowed in "regeneration" and "plantation" areas and "fodder reserves".

28.

Shooting, etc., in vested forest.

- Subject to the provision in clause (f) of sub-section (2) of Section 75, the rules and orders issued by State Government under the provisions of the Indian Forest Act (XVI of 1927), to regulate hunting and shooting in the reserved forests and under the provisions of the Elephants Preservation Act, 1879, shall apply mutatis mutandis to the vested forests.

29.

Burning of charcoal and processes of manufacture to be applied to forest produce.

- The burning of charcoal or the subjection of any forest produce to any manufacturing processes shall be regulated by the instructions that may be issued by the Chief Conservator from time to time.

30.

Regulation of the rights to be exercised by the right-holders.

(1)

The manner and the extent to which the rights in all vested forests may be exercised shall be regulated by Rule 5.

(2)

During the period from July 1 to September 30, the President of the Gaon Sabha of the village in which a right-holder resides or which does not come under the jurisdiction of any Gaon Sabha, the person selected by the villagers from amongst the right-holders of the village to represent them for the purpose, shall submit to the Range Officer concerned a

statement showing against the name of each right-holder of his village the quantity of timber which each right-holder will require for domestic purposes during the year

(3)

On receipt of the statement mentioned in sub-rule (2), the Range Officer shall determine the extent to which the requirements of the right-holders can be met from the prescribed coupe of the year, and before October 31, shall issue a permit showing the quantity of timber and fire-wood allotted to each individual village, and the location limits and areas of the annual coupes from which such timber and firewood may be obtained during the year.

Note. - If the aforesaid statement is not received by the Range Officer in time, he shall take steps at once to obtain it from the President of the Gaon Sabha concerned or the person selected to represent the right-holders, as the case may be, so that the interest of right-holders may not suffer.

(4)

Fellings shall commence in a systematic and not haphazard manner from the end of the annual coupe.

(5)

Trees shall not be cut at a height of more than 6 inches from the ground. No bamboo-culm less than a year old shall be cut. In cutting bamboos, sharp instruments must be used so that the culm may not be split.

(6)

No tree capable of yielding timber shall be cut for the purpose of fuel. The Divisional Forest Officer will in his discretion decide for the purposes of this rule which species of trees shall be classed as timber trees.

(7)

The annual coupe will remain open to the right-holders each year from November 1 to December 31, and at no other time of the year. In case of emergencies, however, the Range Officer may, with the approval of the Divisional Forest Officer, open the annual coupe for the right-holders at any other time.

(8)

During November and December every year, a Forest Officer, not below the rank of a Forester, shall be on duty in each felling coupe from which right-holder's timber and fuel will be removed, and it shall be his duty to see that all trees felled by the right-holders are fully utilised. In the case of wasteful conversion on the part of the right-holders, the estimated quantities of timber and fuel so wasted shall be debited to the right-holder's account and shall be deducted from his next quota of timber and fuel.

(9)

The felled produce must be stocked in regular stacks in the coupe by the right-holders and shall not be removed until it has been measured and entered in the right-holder's and Forest Officer's copies of the permit. Entries shall be made on each occasion when removal is made from the coupe.

31.

Compounding of forest offences.

(a)

In compounding forest offence under Section 62 of the Act, a Forest Officer subordinate to a Conservator shall not, without the sanction of the Conservator, demand in any case, an amount as compensation which exceeds ten times the value of the forest produce in respect of which reasonable suspicion exists that a forest offence has been committed, subject to a maximum of Rs. 50 for each offence.

(b)

All officers exercising power under Section 62 shall enter all cases taken up by them with a view to disposal under that section in a register which should show that the following :

(a)

serial number (by financial year);

(b)

name, parentage, and residence of the offender;

(c)

offence, section of Act, value of the property in respect of which the offence has been committed;

(d)

date of report and arrest, if made;

(e)

statement of the offender;

(f)

decision with abstract of the facts and date of conclusion of the case;

(g)

amount of compensation demanded;

(h)

date on which paid or reasons for non-payment (Item No. is quoted from the Range Officer's cash-book).

(c)

No offence alleged to have been committed more than two months before the date of the first report regarding it may be compounded, except after a personal investigation by the Divisional Forest Officer or other officer duly empowered by law to compound offences.

(d)

An officer empowered to accept compensation shall not offer to accept it, except in cases in which he has enquired into the case himself, or has got it enquired into under his orders by an officer not below the rank of a Forester.

(e)

Case-report shall be made in Form IV. A report will be written in triplicate in this form. Two copies will be forwarded to the Range Officer or to the Tahsildar, where there is no such Range Officer, by the subordinate making the offence report. The Range Officer or the Tehsildar will submit one copy of the report to the Divisional Forest Officer or the Collector for information immediately upon receipt and use the other copy for further enquiry and submission with the final report. The same procedure will apply to the reports of the case initiated by the Range Officer or the Tahsildar himself.

32.

Duties and powers of Forest Officers.

- The duties and powers of Forest Officer under the Act shall be the same as those of the Forest Officers under the Indian Forest Act (XVI of 1927), and the rules and orders made thereunder.

Form I

[See Rules 6 and 22]

Felling Permit

sondaughterwife] of

of mauza pargana district..... is hereby permitted subject to the condition given below to cut, collect and remove the following trees, timber for fuel from compartment block..... of forest..... District :

This permit is valid up to.....

List of trees

Diameter or girth in inches at height

Firewood quantity

Remarks

Divisional Forest Officer, Division.

Conditions under which the permit in Form I is issued

(1)

The permit is personal and non-transferable.

(2)

The permit: must be produced on demand by any Forest or Police Officer.

(3)

The permit is valid only for the forest areas entered therein.

(4)

The permit may be cancelled at any time by the Conservator or the Divisional Forest Officer, and the permit-holder shall immediately stop felling, conversion and removal of the forest produce and withdraw from the forest should he receive a written request to do so from either of the aforesaid officers.

(5)

The permit-holder shall not cut down any tree at a height of more than six inches from the ground or any bamboo culm

less than one year old nor shall he conduct the felling in such a manner as to damage the bark of the tree at the stump.

(6)

Felling and conversion shall not be wasteful or careless.

(7)

Roots of trees shall not be dug except with the written permission of the Divisional Forest Officer.

Permit No

Form II

[See Rules 4 and 25]

Permit of Reclamation of Land

sondaughterwife] of of mauza

pargana district is hereby permitted subject to the conditions detailed below to reclaimacres of land in compartment block of forest as shown on the map attached herewith.

Divisional Forest Officer, Division.

Conditions of permit

(1)

The land must be brought under cultivation within the next twelve months.

(2)

On slopes steeper than 1 in 100, suitable contour embankments shall be constructed so as to effectively prevent soil erosion from the cultivated portion and no cultivation shall be started or done unless such contour embankments have been constructed.

(3)

On slopes steeper than 1 in 50, in addition to contour embankments suitable terrace shall be built and no cultivation shall be done except on such terraces.

(4)

Ploughing on slopes shall be done along the contour and not across it.

Form III

[See Rules 6 and 22]*

Felling Licence

Subject to the condition detailed in the schedule attached hereto

sondaughterwife] of hereto of

mauza pargana district (being the landlord of forest) is hereby permitted to fell and dispose of the trees specified below from compartment block of forest.

This permit is valid up to

List of| markedto be marked| for felling.

Species

Number

Diameter or girth in inches at breast height

Dated

Divisional Forest Officer, Division.

* To be struck off if the licence is issued under Rule 22.

Conditions under which the permit in Form III is issued

(1)

The permit is transferable.

(2)

The permit must be produced on demand by any Forest or Police Officer.

(3)

The permit is valid only for the forest area specified therein.

(4)

The permit may be cancelled at any time by the Conservator or Divisional Forest Officer, and the permit-holder shall immediately stop further fellings, conversion and removal of forest produce and withdraw from the area should be received a written request to do so from either of the aforesaid officers.

(5)

The permit-holder shall not cut down any tree at a height of more than 6 inches from the ground or any bamboo culm less than one year old nor shall he conduct the felling in such a manner as to damage the bark of the trees at the stump.

(6)

Felling and conversion shall not be wasteful or careless.

(7)

Roots of trees shall not be dug except with the written permission of the Divisional Forest Officer.

(8)

The following work shall be carried out by the landlord for the restocking and improvement of the forest area (details should be filled in by the Divisional Forest Officer).

(a)

..... (b) (c) (d)

Form IV

[See Rule 31]

Name of forest

Block

Compartment

Division District Sub-Division

Forest Offence.....

Report on dated

Range Tahsil

Appendix A

The following headings will be used in writing up a working-plan :

Table of Contents

Introduction

Glossary of local names of trees, shrubs, etc.

Glossary of local terms.

Part I ? Summary of facts on which proposal are based

Chapter I

The tract dealt with

Name and situation.

Configuration of the ground.

Geology, rock and soil.

Climate and rainfall.

Water supply.

Distribution and area.

State of boundaries.

Legal position.

Rights and concessions.

Chapter II

The forest

Composition and condition of the crop.

Injuries to which the crop is liable.

Chapter III

Utilization of the forest produce

The people, their agricultural customs and requirements.

Markets and marketable products.

Lines of export.

Methods of exploitation and their cost.

Past and current prices.

Chapter IV

Staff and labour supply

The Forest Staff.

Labour supply.

Chapter V

Past system of management

General history.

Past system of management and their results.

Special works of improvement undertaken.

Past outturn.

Past revenue and expenditure.

Chapter VI

Statistics of growth and yields

Growth and yield statistics of different species.

Part II ? Future management discussed and prescribed

Chapter I

Basis of proposals

General objects of management.

Constitution of working circles.

Blocks and compartments.

Period of the plan.

Necessity of intermediate revision.

Chapter II

, III, etc. Details of management of each working circle (separate Chapter for each working circle)

General constitution.

Special objects of management.

Division into felling series.

Area.

Analysis and valuation of the crop.

Silvicultural system.

Rotation and exploitable size.

Division into periods.

Reduced areas and reducing factors.

Calculation of the yield.

Tabular statement of fellings.

Method of executing fellings.

Subsidiary operation.

Artificial regeneration, protection and tending of the crop.

Regulation and limitation of the rights of user.

Chapter next

Miscellaneous regulations

Roads and paths.

Buildings and wells.

Fire protection.

Grazing.

Plantation and nurseries.

Survey and maps.

Collection and records of statistics.

Chapter next

Establishment and labour

Establishment.

Labour.

Chapter next

Control and records

Control of Forms.

Compartment and block histories.

Note book of matters of special importance.

Fire records.

Chapter next

Financial forecast and cost of the plan

Financial forecast.

Cost of the plan.

Chapter next

Summary of prescriptions

Appendices

I. - Area statement.

II. - Enumeration results.

III. - Any rules, Government notifications or orders relating to the forest.

IV. - Statement of rights and concessions.

V. - Any other matter affecting the legal position and management of the forest.

Related AI tags, queries and research notes

Translation